

**IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF MISSISSIPPI
OXFORD DIVISION**

MATTHEW OLIVER REARDON

PLAINTIFF

VS.

CIVIL ACTION NO.: 3:22-CV-00050-SA-JMV

STATE OF MISSISSIPPI, ET AL.

DEFENDANTS

**COUNTY DEFENDANTS' NOTICE OF SERVICE OF
MOTION FOR JUDGMENT ON THE PLEADINGS**

Defendants Lafayette County, Mississippi; Lafayette County Sheriff's Department; and Joseph B. East, individually and in his official capacity (collectively, "County Defendants") hereby submit this Notice of Service of Motion for Judgment on the Pleadings [Docs. 46, 47] and would show unto the Court the following:

1. County Defendants filed a Motion for Judgment on the Pleadings [Docs. 46, 47] on January 11, 2023.

2. Pursuant to Uniform Local Civil Rule 7(b)(4), Plaintiff was required to file a response in opposition to County Defendants' motion on or before January 25, 2023. *See* L.U.C.R. 7(b)(4) ("Counsel for respondent must, within fourteen days after service of movant's motion and memorandum brief, file a response and memorandum brief in support of the response.").

3. In the Court's most recent Order and Memorandum Opinion [Doc. 51], the Court directed "the Clerk of Court to mail a copy of [the] Order and an Acknowledgment of Receipt to Reardon's attention at the Lafayette County Detention Center and to Reardon's physical address listed on the docket." Doc. 51, at 7 n. 2.

4. As the Court noted in its Order and Memorandum Opinion [Doc. 51], Plaintiff is registered to receive notice of all electronic filings in this matter. *Id.* However, out of an abundance of caution, County Defendants have also mailed physical copies of their Motion for

Judgment on the Pleadings [Doc. 46] and Memorandum in Support of Motion for Judgment on the Pleadings [Doc. 47] to the following addresses by U.S. Certified Mail: (1) Lafayette County Detention Center, 711 E. Jackson Avenue, Oxford, Mississippi 38655; and (2) 117 CR 401, Oxford, Mississippi 38655.

5. Further, due to discrepancies between the e-mail address contained in Plaintiff's Amended Complaint (legal@mattreardon.com) and Plaintiff's registered e-mail address to receive electronic notifications on the electronic filing system (matt@mattreardon.com), County Defendants have also e-mailed copies of their Motion for Judgment on the Pleadings and Memorandum in Support of Motion for Judgment on the Pleadings to both of the foregoing e-mail addresses, with all counsel of record copied on the e-mail.

Respectfully submitted,

PHELPS DUNBAR LLP

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ATTORNEYS FOR COUNTY DEFENDANTS

CERTIFICATE OF SERVICE

I, Marcellus D. Chamberlain, hereby certify on this date I electronically filed the foregoing *COUNTY DEFENDANTS' NOTICE OF SERVICE OF MOTION FOR JUDGMENT ON THE PLEADINGS* with the Clerk of the Court using the CM/ECF system, which sent notification to the following recipients:

Matthew Oliver Reardon
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This the 26th day of January, 2023.

/s/ Marcellus D. Chamberlain
Marcellus D. Chamberlain